

Court No. - 29

Case :- WRIT - C No. - 10367 of 2020

Petitioner :- Rajesh Kumar Gupta

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Manoj Kumar Keshari

Counsel for Respondent :- C.S.C.

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Saumitra Dayal Singh,J.

1. Heard learned counsel for the parties.
2. The petitioner is aggrieved by the demand notice issued under Section 138 of the Electricity Act imposing civil liability on the petitioner for unauthorized use/theft of electricity.
3. In our opinion, the said demand can be challenged by taking recourse of the provisions under Clause 8.3 of the U.P. Electricity Supply Code, 2005.
4. Accordingly, the writ petition is **dismissed** on the ground of alternative remedy.

Order Date :- 25.6.2020

Prakhar